

OCTOBER 11, 2023

1:30 P.M. CIVIL Case Management

22CV46383	BUTLER v. COMMERCIAL SITE IMPROVEMENTS	Defendant to file a properly noticed Demurrer (See ruling dated Feb. 24, 2023) or an Answer to Complaint. The next Case Management Conference (CMC) is set for January 31, 2024 at 1:30 p.m. in Dept. 4.
23CF14174	CALIFORNIA AUTOMOBILE INSURANCE CO. v. BLACKHAWK PARAMOTORS USA	Matter is out for service. The next Case Management Conference (CMC) is set for January 31, 2024 at 1:30 p.m. in Dept. 4.
22CF13947	CREDIT CORP SOLUTIONS v. FULKERSON	Plaintiff to file Default and Default Judgment or Dismissal. The next Case Management Conference (CMC)/Order to Show Cause (OSC) is set for January 31, 2024 at 1:30 p.m. in Dept. 4.
22CF13948	CREDIT CORP SOLUTIONS v. ORTEGA	Plaintiff to file Default and Default Judgment or Dismissal. The next Case Management Conference (CMC)/Order to Show Cause (OSC) is set for January 31, 2024 at 1:30 p.m. in Dept. 4.
22CV46366	DELING v. CORSON	Counsel appeared at the last CMC and requested a trial date, this can be accomplished by filing an At-Issue Memorandum. The next Case Management Conference (CMC) is set for January 31, 2024 at 1:30 p.m. in Dept. 4.
22CV46130	FASOLIS v. GLADYS	Answer to Cross-Complaint on file. Parties to conduct discovery. The next Case Management Conference (CMC) is set for February 7, 2024 at 1:30 p.m. in Dept. 4.
22CV46114	FRAZIER v. TRI-DAM	Plaintiff requests an additional Case Management Conference (CMC) while considering amending his Complaint. There are no dispositive motions before the Court. The next CMC is set for February 7, 2024 at 1:30 p.m. in Dept. 4.
18CV43607	GROW v. KW EMERSON	This matter is set for hearing on an Order to Show Cause re: Dismissal. Upon review of the file, the Complaint was filed on 9/28/2018. CCP §583.310 requires an action to be brought to trial within five (5) years. It has not satisfied this requirement. This matter is DISMISSED.
23CV46772	HINES v. UPS, Inc.	Court notes that plaintiff has served the Summons, Complaint, and Notice of Inclusion. The next Case Management Conference (CMC) is set for February 7, 2024 at 1:30 p.m. in Dept. 4.
22CV46279	KEEVER v. PREST	Proof of Service and Answer filed within the past month. The next Case Management Conference (CMC) is set for February 7, 2024 at 1:30 p.m. in Dept. 4 where

		parties will provide update on status of discovery in their CMC Statements.
23CV46620	LEHR v. ESQUIVEZ	The Answer was filed within the past month. The next Case Management Conference (CMC) is set for February 7, 2024 at 1:30 p.m. in Dept. 4 where parties will provide update on status of discovery in their CMC Statements.
18CF12286	MILES v. BATES	A Proof of Service has been filed but an Answer has not been filed. Plaintiff is to file a dismissal or a default prior to the next Management Conference (CMC). The next CMC is set for February 7, 2024 at 1:30 p.m. in Dept. 4.
22CV45872	MIRANTE v. FYOCK	Plaintiff to properly name and serve defendants so that names and capacities match and then resubmit Requests for Entry of Default. The next Case Management Conference (CMC) is set for February 7, 2024 at 1:30 p.m. in Dept. 4.
22CV46116	PHILLIPS v. RADER-COLEMAN	Plaintiffs state in CMC Statement that discovery is complete. The next Case Management Conference (CMC) is set for February 7, 2024 at 1:30 p.m. in Dept. 4.
22CF13949	PORTFOLIO RECOVERY ASSOC. v. HENAGHAN	No proof of service has been filed; and therefore, no Judgment can be filed with the court within 360 days after filing the Complaint (as required by ORDER TO SHOW CAUSE (COLLECTION CASES ONLY) RE: PLAINTIFF'S FAILURE TO OBTAIN DEFAULT JUDGMENT WITHIN 360 DAYS. [CRC 3.740]). The next Case Management Conference (CMC) and OSC re: DISMISSAL is set for February 7, 2024 at 1:30 p.m. in Dept. 4.
21CV45655	MURPHY v. WINCO HOLDINGS	There is no valid Proof of Service as to the Summons and Complaint. Regarding the Plaintiff's Memorandum filed 11-12-2021, it is not clear to the Court what Plaintiff is requesting. Plaintiff has been advised at past CMCs (2/16/2022, 6/8/2022, 9/22/2022, and 2/22/2023) to seek legal counsel. If Plaintiff is seeking to dismiss this case; a Request of Dismissal is to be filed. Finally, the plaintiff is to update their mailing address with the court. The next CMC and OSC re: Dismissal pursuant to CCP 583.420 (a)(1) is set for February 14, 2024 at 1:30 p.m. in Dept. 4. Court to provide notice to the plaintiff.
23CV46771	SHUMAN v. EDWARDS	The parties have agreed to sell the subject property, which is currently listed and offers have been submitted. The next Case Management Conference (CMC) is set for February 14, 2024 at 1:30 p.m. in Dept. 4.